And, in *Meyer* v. *Nebraska,* 262 U. S. 390, 399, the Court, referring to the Fourteenth Amendment, stated:

> "While this Court has not attempted to define with exactness the liberty thus guaranteed, the term has received much consideration and some of the included things have been definitely stated. Without doubt, it denotes not merely freedom from bodily restraint but also [for example,] the right . . . to marry, establish a home and bring up children . . . ."

This Court, in a series of decisions, has held that the Fourteenth Amendment absorbs and applies to the States those specifics of the first eight amendments which express fundamental personal rights.[2] The language and history of the Ninth Amendment reveal that the Framers of the Constitution believed that there are additional fundamental rights, protected from governmental infringement, which exist alongside those fundamental rights specifically mentioned in the first eight constitutional amendments.

The Ninth Amendment reads, "The enumeration in the Constitution, of certain rights, shall not be construed to deny or disparage others retained by the people." The Amendment is almost entirely the work of James Madison. It was introduced in Congress by him and passed the House and Senate with little or no debate and virtually no change in language. It was proffered to quiet expressed fears that a bill of specifically enumerated rights[3] could not be sufficiently broad to cover all es-

[2] See, *e. g., Chicago, B. & Q. R. Co.* v. *Chicago,* 166 U. S. 226; *Gitlow* v. *New York, supra; Cantwell* v. *Connecticut,* 310 U. S. 296; *Wolf* v. *Colorado,* 338 U. S. 25; *Robinson* v. *California,* 370 U. S. 660; *Gideon* v. *Wainwright,* 372 U. S. 335; *Malloy* v. *Hogan,* 378 U. S. 1; *Pointer* v. *Texas, supra; Griffin* v. *California,* 380 U. S. 609.

[3] Madison himself had previously pointed out the dangers of inaccuracy resulting from the fact that "no language is so copious as to supply words and phrases for every complex idea." The Federalist, No. 37 (Cooke ed. 1961), at 236.